

Calendar Line # 9
Case Name Salvador Ortiz vs General Motors LLC
Case No. 25CV480281
Motion for Attorneys’ Fees and Costs <u>I. BACKGROUND</u> This case stems from a Complaint under the Song-Beverly Act that was filed on November 18, 2025 regarding Plaintiff Salvador Agabo Ortiz’s (“Ortiz”) 2025 2011 Chevrolet Equinox EV, vehicle identification number 3GN7DSRP7SS241927 (“Subject Vehicle”) against General Motors, LLC (“GM”). (Complaint). On May 4, 2026, Plaintiff Ortiz accepted Defendant GM’s offer to compromise, under Code of Civil Procedure section 998 to repurchase the Subject Vehicle in the amount of \$56,000.00 inclusive of loan payoff and all actual damages. (Declaration of Bryan M. Geoulla, ¶¶42-44; Exhibit 1). Before the court is Plaintiff’s motion for attorneys’ fees and costs that was filed on July 13, 2026. The motion was accompanied by a proof of service indicating electronic mail service to defense counsel on that same day. Plaintiff seeks an Order awarding her attorneys’ fees in the amount of \$24,549.50 and costs in the amount of \$1,413.01 for a total amount of \$25,962.51. Plaintiffs do not seek an enhancer int his matter and no evidence was proffered regarding a multiplier. Defendant GM filed an opposition papers on August 19, 2026. Plaintiff filed a reply brief on August 24, 2026. The Court has carefully reviewed the following: Plaintiff’s notice of motion and memorandum of points and authorities (totaling 19 pages), Declaration of Bryan M. Geoulla and attached Exhibits 1-3 (totaling 47 pages); Declaration of Ryan Aaron Youbian (totaling 4 pages); Declaration of Michael Josephson (totaling 5 pages); Declaration of Erik Khorovsky (totaling 4 pages); GM’s Opposition (totaling 16 pages); Declaration of Ryan Kay in support of the Opposition and attached Exhibits A-D (totaling 42 pages); Plaintiff’s Reply brief (totaling 11 pages); proofs of services; and the pleadings. <u>II. LEGAL STANDARD</u> A. ATTORNEY’S FEES Pursuant to Code of Civil Procedure section 1033.5(a)(1), a prevailing party is entitled to recover its attorney’s fees when authorized by contract, statute, or law. (<i>See also</i>, Civ. Code § 1717(a)). “A successful party means a prevailing party, and [a party] may be considered prevailing parties for attorney’s fees purposes if they succeed on any significant issue in litigation which achieves some of the benefit the parties sought in bringing suit.” (<i>Bowman v. City of Berkeley</i> (2005) 131 Cal.App.4th 173, 178). The Song-Beverly Act provides, “[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code § 1794(d)). Thus, the statute includes a “reasonable attorney’s fees” standard. The attorney bears the burden of proof as to “reasonableness” of any fee claim. (Code Civ. Proc., § 1033.5(c)(5)). This burden requires competent evidence as to the nature and value of the services rendered. (<i>Martino v. Denevi</i> (1986) 182 Cal.App.3d 553, 559). “Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of

attorney fees, even in the absence of detailed time records.” (*Ibid.*). In determining a reasonable attorney fee, the trial court considers the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 36). The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (*Ibid.*) The lodestar amount “may be adjusted by the court based on factors including (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award.” (*Bernardiv. County of Monterey* (2008) 167 Cal.App.4th 1379, 1399, citing *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132). The purpose of any lodestar and the increase thereto “is intended to approximate market-level compensation for such services” and is entirely discretionary. (*Id.*). “The purpose of a fee enhancement is not to reward attorneys for litigating certain kinds of cases, but to fix a reasonable fee in a particular action.” (*Weeks v. Baker & McKenzie* (1998) 63 Cal.App.4th 1128, 1171-72).

“Under the lodestar adjustment methodology, the trial court must initially determine the actual time expended and then ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. Factors to be considered include, but are not limited to, the complexity of the case and procedural demands, the attorney skill exhibited and the results achieved. The prevailing party and fee applicant bears the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount. It follows that if the prevailing party fails to meet this burden, and the court finds the time expended or amount charged is not reasonable under the circumstances, then the court must take this into account and award attorney fees in a lesser amount.” (*Mikhaeilpoor v. BMW of N. Am., LLC* (2020) 48 Cal.App.5th 240, 247 [cleaned up]). “The courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom, and this includes the determination of the hourly rate that will be used in the lodestar calculus. In making its calculation, the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.” (*569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 437, citations omitted).

“‘In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.’ ” (*Lunada Biomedical v Nunez* (2014) 230 Cal.App.4th 459, 488, citing *Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564). The court will exercise its discretion in determining if the Plaintiff’s attorney’s fees request is reasonable by considering the following factors: the nature of litigation, its difficulty, the amount involved, the skill required in handling the matter, the attention given, the success or failure, and the resulting judgment. (*Melnyk v. Robledo* (1976) 64 Cal.App.3d 618, 623).

B. COSTS

The prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.6 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case.” (California Rule of Court, rule 3.1700(a); see also *Hydratec, Inc. v. Sun Valley 260 Orchard & Vineyard Co.* (1990) 223 Cal.App.3d 924, 927–928). The Song-Beverly Act allows a prevailing party to recover all expenses, including those not traditionally allowed. (See *Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112).

III. ANALYSIS

A. ATTORNEY'S FEES

Here, Plaintiff seeks 54.8 hours of attorneys' fees in the amount \$24,549.50 for four attorneys at Seven Law Group, APC: (1) Bryan Geoulla; (2) Ryan A. Youabian; (3) Michael Josephson; and (4) Erik Khorovsky with hourly rates ranging from \$350.00 to \$495.00. (Declaration of Geoulla, ¶ 62). Attorney Geoulla seeks 13.4 hours at an hourly rate of \$450.00 for a total amount of \$6,030.00. (*Id.*; Exhibit 2). Additionally, attorney Geoulla seeks 2.8 hours for reviewing oppositions, drafting a reply, and appearing at the hearing at the aforesaid hourly rate and seeks an additional \$1,260.00. Attorney Youabian seeks 19.1 hours at an hourly rate of \$495.00 for a total amount of \$9,454.50. (Declaration of Youabian, ¶¶ 17-19; Exhibit 2). Attorney Josephson seeks 21.4 hours at an hourly rate of \$350.00 for a total amount of \$7,490.00. (Declaration of Josephson, ¶¶ 22-25; Exhibit 2). Attorney Khorovsky seeks 0.9 hours at an hourly rate of \$350.00 for a total amount of \$315.00. (Declaration of Khorovsky, ¶¶ 13-16). Plaintiffs avers that defense intended to litigate this matter from the onset by filing a protective order and noticing the deposition of the plaintiff, and staffing the case with five different attorneys. (Declaration of Geoulla, ¶¶ 37-38). Plaintiff's counsel attests that this matter required extensive analysis of multiple repair records, warranties, discovery and initial disclosures, depositions, discussions regarding 998 offers, post settlement, and legal strategy. (*Id.*, ¶¶ 60-61).

Defendant GM opposes the requested amount of attorney's fees on two main grounds: (1) not reasonably necessary to conduct litigation, excessive, inflated, duplicative; and (2) non-recoverable clerical fees and anticipated time. (Opposition, p. 6-14). Specifically, defense challenges the following: 5.6 hours of excessive time on prelitigation tasks including a client intake in the amount of \$2,752.50; 1.8 hours of templated complaint package and clerical filing tasks in the amount of \$810.00; 1.0 hour of excessive time in reviewing the Answer and service package in the amount of \$450.00; 1.7 hours of preparing initial discourse in the amount of \$765.00; 2.4 hours of excessive time in reviewing GM's document production in the amount of \$1,188.00; 6.2 hours of excessive time spent on tasks related to the deposition of the plaintiff in the amount of \$2,703.00; 13.2 hours of excessive time regarding the deposition of GM's PMK in the amount of \$4,968.00; 3.9 hours of redundant and excessive time on settlement tasks in the amount of \$1,842.00; 2.5 hours of administrative and clerical time for internal communications amounting to \$1,105.00; 3.1 hours of time not related to the commencement or prosecution of this action in the amount of \$1,277.50; and 2.8 hours of anticipated time in the amount of \$1,260.00. (*Id.*, p. 14-15; Declaration of Kay ¶¶ 13-17). In total, Defendant GM seeks to reduce 44.2 hours of attorneys' time and \$19,121.00 in fees. (*Id.*, p. 15). Defense avers that no more than \$5,428.50 in fees should be awarded. (*Id.*, p. 15).

The Court finds the Plaintiff has met its burden of establishing an award of attorneys' fees and GRANTS the request for fees, but DENIES the requested amount of \$24,549.50. The Court reduces a total of 10.5 hours of work expended based on excessive time on client intake and pre-litigation tasks, duplicative and excessive client communication and settlement related tasks; administrative and clerical time for internal communication, other hours not directly related to the prosecution of the case, as well as, 2 hours of anticipated time for an appearance in this matter that is prospective and excessive time for reviewing an opposition. The Court awards 0.8 for review and drafting a Reply at the requested hourly rate of \$450.00 in the amount of \$360.00. The total of 12.5 hours are reduced and \$5,654.42 is reduced. Thus, attorneys' fees are granted in the amount of \$18,895.08.

B. COSTS

Plaintiffs' counsel seeks costs in the amount of \$1,413.01 (Declaration of Geoulla ¶ 72). In support of its request for costs, Plaintiff filed a memorandum of costs on July 13, 2026 (Declaration of Geoulla ¶ 70; Exhibit 3) and submitted invoices in support of expenses Declaration of Geoulla ¶ 71; (Exhibit 4). The costs comprise of filing and motions fees, deposition costs, process service fees, and electronic filing service fees. The memorandum of costs included exhibits with breakdown for costs along with invoices.

Defendant GM opposes costs on the ground that Plaintiff's counsel fails to establish the \$1,413.01 that is requested and alleges that the invoices attached in Exhibit 4 to the Declaration Geoulla amount to \$1,353.01, which is sixty dollars that the amount claimed. (Opposition, at p. 13). Plaintiffs avers in its Reply brief that the sixty dollar discrepancy is accounted for in the filing fees of this present motion as itemized in Exhibit 2.

Defendant also asserts that Plaintiff has not established that expenses were reasonably incurred as required under Code of Civil Procedure sections 1032 and 1033.5. (*Id.*). Defendant also objects to bundling of costs, including deposition costs in the amount of \$80000 unreasonable or non-compensable. (*Id.*, at p. 13-14). Defendant requests that the Court taxes \$940.41 in costs.(*Id.*). Defense avers that no more than \$472.50 in costs should be awarded. (*Id.*, p. 15).

The Court finds that GM has failed to timely file a motion to tax after the Plaintiff submitted a memorandum of costs and DENIES Defendant's request to tax cost.

The Court finds that Plaintiff has established its burden of proving costs. The Court GRANTS the request for costs in the amount of \$1,413.01.

IV. CONCLUSION

Based on the foregoing, the Court GRANTS Plaintiff's request for attorneys' fees in the amount of \$18,895.08. The Court GRANTS's Plaintiff's request for costs in the amount of \$1,413.01. The Court will prepare the formal order.